

ELECTRONICALLY FILED

CHARLES TINKER, INDIVIDUALLY AND
AS EXECUTOR OF THE ESTATE OF
THELMA TINKER, DECEASED, ET AL.

PLAINTIFFS

v.

**PLAINTIFFS' NOTICE TO TAKE VIDEOTAPE
DEPOSITION PURSUANT TO CR 30.02(6)**

UofL HEALTH-LOUISVILLE, INC.
d/b/a UofL HEALTH, ET AL.

DEFENDANTS

* * * * *

Please take notice that Plaintiffs, by counsel, will, on **June 4, 2026**, at the hour of **10:00 a.m.**¹, local time, proceed to take the videotaped deposition of the corporate representative(s) designated by Defendants, UofL Health, Inc., UofL Health-Louisville, Inc. and University of Louisville Physicians, Inc. (each of which is separately a “Deponent” and each of which is required to identify the designee(s) binding it on each particular topic; all Deponents are, collectively, “UofL”) at the office of Oldfather Law Firm, PLLC, 1330 South Third Street, Louisville, KY 40208.

Pursuant to CR 30.02(6), each Deponent is hereby advised of its duty to designate one or more persons who consent to testify on its behalf regarding knowledge reasonably available to Deponent on each Topic set forth below. It is

¹ For efficiency, this date was selected by the undersigned. If the date selected does not work for witness or counsel, please contact the undersigned, and we will adjust to a date within the court-ordered due dates.

further the duty of each Deponent to fully prepare the designee(s) on the Topics for which the designee(s) are to testify on its behalf.

Plaintiffs will conduct the deposition via Zoom for use of its screen-sharing capability; all participants may elect to attend in person or remotely provided that remote access is available to designee(s) requiring access to EHR platforms as described below. Any designee(s) attending remotely will be sworn pursuant to KRS 423.325.

When the facts known or reasonably available to designee(s) are represented by documents, “identify and discuss” means to provide the Bates number(s) or the document(s) itself that reflect(s) the event or topic and to explain the manner in which the document(s) reflect(s) the event or topic at issue. When there is any uncertainty about the meaning of terms, please refer to Appendix A. Unless a different time frame is provided, the time frame for each topic is from the date of August 8, 2022 through to the present.²

Exhibits and other demonstrative evidence utilized by Plaintiffs shall wherever possible be displayed electronically to any remote designee(s). Exhibits and other demonstrative evidence utilized by the designee(s), specifically but not only “live” display from any EHR platforms as described below to be inspected pursuant to this notice, shall be displayed by the designee(s) and captured by screenshots from the

² Counsel are prepared to discuss and attempt to resolve any disagreement as to scope or content of the Topics; please contact the undersigned as soon as convenient should that be necessary.

Zoom recording of the electronic systems. Where appropriate or requested, those screenshots may be marked as deposition exhibits.

Except objections pursuant to CR 30.02(4)(e) which shall be stated succinctly, objections are reserved and shall not be stated on the video recording.

Each Deponent is request to provide where relevant and/or material on any Topic, live access to all EHRs relating to Thelma (“Timmi”) Tinker in NATIVE ELECTRONIC FORMAT, and in that regard **PLEASE BE ADVISED THAT THIS NOTICE IS ALSO A REQUEST BY PLAINTIFFS TO EACH DEPONENT PURSUANT TO CR 34.01(a)** to inspect and copy all any documents, materials, and EHRs, including but not limited to ESI and any and all forms of data compilations from which information may be obtained, and as more broadly defined at Appendix A.

Each Deponent shall provide all knowledge reasonably available to Deponent on these Topics:

1. With regard to Timmi’s MYCHART, please explain and demonstrate in Timmi’s MYCHART:
 - a) How access to the August 15, 2022 PET scan report was provided through Timmi’s MYCHART;
 - b) When access to the August 15, 2022 PET scan report was provided through Timmi’s MYCHART;
 - c) Whether Deponent can establish Timmi read the August 15, 2022 PET scan report on her MYCHART and if so, when, by whom and please demonstrate how this is known;
 - d) Whether Deponent can establish that the August 15, 2022 PET scan report was printed from Timmi’s MYCHART and if so, when, by whom, to what device, and please demonstrate how this is known;
2. Does Deponent admit that it was Dr. Gettis’ responsibility to report to Timmi directly the results of the August 15, 2022 PET scan report?
3. Does Deponent contend that patients have an established standard of care to:

- a) Use the MYCHART functionality;
 - b) Be aware of all test results posted in an available MYCHART;
 - c) Understand the clinical significance of a PET scan report.
4. Does Deponent contend that Timmi had a duty to:
 - a) Use the MYCHART functionality;
 - b) Be aware of all test results posted in her MYCHART;
 - c) Understand the clinical significance of the August 15, 2022 PET scan report.
5. With regard to Deponent's PACS³, please explain and demonstrate how the original imaging and report of Timmi's August 15, 2022 PET scan report migrated from the PACS to Timmi's MYCHART.
6. Describe the In-Basket system, including how messages are generated, tracked, routed, received, opened, acknowledged, completed, and audited.
7. Describe the "acknowledge[d]" function in UofL's EHR and AUDIT DATA, including its relationship to provider workflow for receipt, review, and acknowledgment of test and radiology results.
8. Describe UofL's In-Basket configuration for moving, retaining, or clearing "acknowledged" results or messages.
9. Describe whether, and if so how, the "acknowledgment" function affects release of test and/or radiology results to MyChart.
10. With regard to Deponent's PACS⁴, please explain and demonstrate how the original imaging and report of Timmi's August 15, 2022 PET scan report migrated from the PACS to Dr. Gettis' In-Basket.

³ This is a reference to the Picture Archiving and Communication System (PACS) used by Deponent's radiology services as medical imaging technology that provides filmless storage, retrieval, management, and distribution of digital medical images, specifically here Timmi's August 15, 2022 PET scan report/images.

⁴ This is a reference to the Picture Archiving and Communication System (PACS) used by Deponent's radiology services as medical imaging technology that provides filmless storage, retrieval, management, and distribution of digital medical images, specifically here Timmi's August 15, 2022 PET scan report/images.

11. Does Deponent contend that Dr. Gettis read the August 15, 2022 PET scan report at any time?
 - a) If so, when?
 - b) Is this contention supported by any document?
 - c) If so, please identify and provide such document(s).
12. Describe and explain the produced AUDIT DATA, including how it was generated, how fields were selected for production, and the extent to which the following are absent:
 - a) MyChart message content;
 - b) In-Basket AUDIT DATA captured by UofL's EHR but not produced;
 - c) In-Basket message content;
 - d) IP address data;
 - e) AUDIT DATA reflecting patient-user access to, viewing of, or review of test and/or radiology results;
 - f) URLs associated with web page entries;
 - g) Record-specific logging identifying, for example, the particular test or radiology records accessed, viewed, or printed;
 - h) Print-related details, including PDF exports, page counts, printer destinations, and the specific documents printed;
 - i) Image-viewer links or integrations to radiology imaging;
 - j) Logging showing when test and/or radiology results were released to the patient;
 - k) Patient notifications, including when they were sent and whether they were opened; and
 - l) Documented communication or follow-up concerning Ms. Tinker's PET scan results in August 2022.
13. Describe UofL's policies and procedures for maintaining all AUDIT DATA and other information contained in its EHR systems, including but not limited to COMMUNICATIONS, from January 1, 2022, to the present;

14. Does Deponent contend that Dr. Aria had a responsibility to communicate the August 15, 2022 PET scan report results at any time to anyone other than as was done?
 - a) If so, why?
 - b) Is this contention supported by any document?
 - c) If so, please identify and provide such document(s).
15. For each EHR used by UofL from January 1, 2022, to the present, produce original exports, copies, and screenshots of all MEDICAL RECORDS relating to Ms. Tinker, including all PHI and all AUDIT DATA, as directed during the deposition and inspection.
16. Produce any key, legend, data dictionary, code table, or other reference material necessary to interpret the AUDIT DATA.
17. Describe whether each Deponent is aware of any documents that have been withheld under any other claim of privilege.
18. Produce in native format and discuss: all documents received, prepared, reviewed, referenced, and/or relied upon, or supportive of any and all of the foregoing topics and of designee's preparation for and/or testimony herein; most current copy of each designee's *curriculum vitae*; each designee's complete job description; and all records of whatever nature (including texts, emails, excel files, and all digital and paper documents) pertaining to Timmi, by whomever generated, that are or have been in each designee's possession, which have been reviewed by each designee, or are or have been subject to any Deponent's control.

Please be further advised that the deposition may cover any topics within the general knowledge of the designee(s), not limited to the above-specific items.

Designee(s) should be ready to discuss and describe all efforts made to search for, locate, and produce the documents responsive to any of the Topics set forth herein, as well as to produce and discuss all documents pertaining to, referenced by, identified in, or supportive of all the foregoing Topics.

The deposition shall continue from day to day until completed, excluding Sundays and holidays. It will be recorded stenographically and by video and may be

used for discovery and for all other purposes permitted by the Kentucky Rules of Civil Procedure.

Respectfully submitted,

/s/ Michael R. Hasken

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CERTIFICATE OF SERVICE

The above signature certifies that, on May 22, 2026, the foregoing was electronically filed with the Clerk of Court using the KCOJ e-filing system and was served via email, to:

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APPENDIX A: DEFINITIONS

A. Hereafter, “UofL” refers generally to the Defendants as defined in Plaintiffs’ Complaint, including all healthcare facilities owned and/or operated by UofL that provided medical care to Ms. Tinker, including but not limited to care provided by Dr. Erica Gettis, D.O., and Robert Aria, M.D. “UofL” also includes all agents, affiliates, predecessor entities, acquired entities, related entities, brother-sister corporations, parent-subsidiary corporations, and any other entity acting or purporting to act on UofL’s behalf or directing UofL to act for its benefit.

B. Whenever the term “DOCUMENT(S)” is used herein, it includes all written, printed, typed, word-processed, copied, photographed, recorded, audio, video, or computer-generated materials, including all electronically stored information (“ESI”). This definition includes metadata (including audit data), and all versions, drafts, revisions, and duplicates. It also includes all COMMUNICATIONS, as defined below, all DOCUMENTS maintained, stored, or generated on any electronic transfer or storage system, information generated by collaboration and communication platforms, and all other writings in UofL’s possession, custody, or control (including UofL’s right to access or obtain such DOCUMENTS upon demand).

C. Whenever the term “COMMUNICATION(S)” is used herein, it means any disclosure, transfer, or exchange of information. This includes, without limitation, oral and electronic communications such as face-to-face conversations, teleconferences, telephone calls, mail, messaging, chat, facsimile, videoconferencing, and personal delivery. The term also includes information

shared on collaboration and communication platforms, as well as comments and communications within shared or tagged documents such as Microsoft Word documents, spreadsheets, and PowerPoint presentations. If a COMMUNICATION is part of, attached to, or linked with a DOCUMENT, it falls within the definition of DOCUMENT above. If a COMMUNICATION includes hyperlinks or other pointers to attachments, or has a document attached to it, both the COMMUNICATION and the attached or linked DOCUMENT are included within the definition of DOCUMENT.

D. Whenever the term “PERSON” is used herein, it refers, without limitation, to a natural person, as well as any corporate, business, and/or governmental entity.

E. Whenever the term “AUDIT DATA” is used herein, it refers to: “complete historical record of entries regarding patient care information automatically collected and stored by electronic health records (EHR) software or, in the case of paper records, collected and stored as a matter of industry standard and related policy and procedure... information entered or altered (changed or deleted) by users or processes and information concerning all users who accessed or who made, changed, or caused entries to be made into the EHR or paper medical record. In the case of EHR, this collection includes, but is not limited to, information regarding demographic data about the user and facts about access and actions taken by the user, such as date, time, location, and area of record accessed/actions taken, and the actions taken by the user or process in the record, such as creation, queries, views, additions, modifications, deletions, and so forth.”

E2147-18 at ¶¶ 3.1.3-3.1.3.1. Audit data can be aggregated into reports, commonly called “audit logs” or “audit trails.” *Id.* at ¶ 3.1.9.1. E2147-18 is incorporated by reference under 45 CFR § 170.299(c)(1).

F. “HEALTHCARE PROVIDER” shall refer to all UofL employees, agents, and consulting providers who treated, cared for, or rendered services to Ms. Tinker.

G. “NATIVE ELECTRONIC FORMAT” shall refer to the format in which ESI was generated, or the format used by the producing party in the ordinary course of business, with the file’s original metadata intact, meaning the metadata fields have not been altered, deleted, updated, or otherwise modified.

H. “ESI” shall refer to electronically stored information, including data and DOCUMENT(S) stored in any electronic media or format.

I. “METADATA” shall refer to: (a) information embedded in or associated with a native file; (b) information generated automatically by the operation of a computer or other information technology system when a native DOCUMENT is created, edited, modified, transmitted, deleted, and/or otherwise manipulated by a user; (c) information about a record in a document-management system, whether created by a user or generated by the system; and (d) information collected during the collection of DOCUMENTS, such as the name of the storage media device on which a document was stored, or the custodian or non-custodial source from which it was collected. METADATA is a subset of ESI, and all requests for DOCUMENTS therefore include all METADATA relating to those DOCUMENTS.

J. “Electronic Medical Record” (“EMR”) or “Electronic Health Record” (“EHR”) means any ESI containing Protective Health Information (“PHI”) for Plaintiff. EMR and EHR are used interchangeably and are defined by HIPAA, 42 U.S.C. 1320d-2 to 1320d-9, and accompanying regulations, 45 C.F.R. Parts 160 and 164, as well as the Standard Specification for Audit Disclosure Logs for Use in Health Information Systems – ASTM E2147-18, which is incorporated under 45 CFR 170.299.

K. “MEDICAL RECORDS” shall include all EHR and/or other ESI, paper records, written recordings, and media containing PHI of Ms. Tinker. “The term ‘record’ means any item, collection, or grouping of information that includes protected health information and is maintained, collected, used, or disseminated by or for a covered entity.”¹

L. “PHI” means protected health information.

¹ 45 CFR 164.501(2).